

Breach of Confidentiality and Privacy under the IT Act

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Introduction

Confidentiality is keeping information secret. It ensures that only authorized people can access sensitive data.

Privacy is the right to control personal information. It allows individuals to decide how their data is collected, used, and shared.

A **data breach** happens when private information is accessed, stolen, or shared without permission. This can lead to identity theft, financial loss, and reputational damage.

India's laws, like the **Information Technology (IT) Act**, help protect data and set rules for organizations handling personal information.. Organizations must follow good security practices such as encryption, secure passwords, and regular system updates to protect data. Individuals should also stay aware by using strong passwords, avoiding suspicious links, and protecting their personal information online.

Maintaining confidentiality and privacy is essential in today's digital world to build trust and ensure safety.

Core Legal Provisions on Confidentiality & Privacy

Section 72 – Breach of Confidentiality and Privacy

Who: Any person who, under powers of the IT Act or rules, has secured access to any electronic record, book, register, correspondence, information, document or other material **without consent**.

Act: Discloses such material to any other person.

Punishment: Imprisonment up to **2 years** OR fine up to **₹1 lakh** OR both.

Legal status: Non-cognizable, bailable (Section 77B).

Violates the confidentiality of information accessed through lawful authority, thereby reducing trust in digital systems. It creates fear among users regarding misuse of sensitive data by authorized persons. Even unauthorized disclosure without malicious intent is punishable under this section. This ensures strict responsibility and protection of personal and official information.

Core Legal Provisions on Confidentiality & Privacy

Section 72A – Disclosure of Information in Breach of Lawful Contract

Who: Any person including an **intermediary**, while providing services under a **lawful contract**, secures access to **personal information** of another.

Intention: With intent to cause, or knowledge that he is likely to cause, **wrongful loss or wrongful gain**.

Act: Discloses that material without consent **or** in breach of the contract.

Punishment: Imprisonment up to **3 years** OR fine up to **₹5 lakh** OR both.

Legal status: Cognizable, bailable (Section 77B)

Undermines both confidentiality and trust in contractual relationships involving personal data. It discourages misuse of information obtained during service delivery or professional engagement. Disclosure with intent to cause wrongful loss or gain makes the offence more serious. This ensures accountability and strengthens data protection in business and service sectors.

Core Legal Provisions on Confidentiality & Privacy

Section 71 – Misrepresentation

Who: Any person dealing with the *Controller or Certifying Authority* (refers to the authorities governing **Digital Signatures** in India) under the IT Act.

Intention: To obtain a license, Digital Signature Certificate, or any approval by providing *false information or suppressing material facts*.

Act: Makes misrepresentation or conceals important information.

Punishment: Imprisonment up to **2 years** OR fine up to **₹1 lakh** OR both.

Legal status: Non-Cognizable, bailable (Section 77B)

Undermines the *integrity and trustworthiness* of electronic records and certification systems. It weakens the reliability of digital authentication mechanisms used in secure communications. Even omission of critical facts is treated as misrepresentation under this section. This ensures transparency and accountability in digital certification processes.

Core Legal Provisions on Confidentiality & Privacy

Section 73 – Publishing False Electronic Signature Certificate

Section 73 is about the **falsity** of the certificate (it's fake or expired).

Who: Any person who publishes a *Digital Signature Certificate*.

Intention: Knowing that the certificate is *false, not issued, or has been revoked/suspended*.

Act: Publishes or makes available a false Digital Signature Certificate.

Punishment: Imprisonment up to **2 years** OR fine up to **₹1 lakh** OR both.

Legal status: Cognizable, bailable (Section 77B)

Directly affects the *integrity and authenticity* of electronic transactions and communications. It can mislead users into trusting forged identities in digital environments. This section is crucial in preventing identity fraud in e-commerce and e-governance systems. It ensures that only valid and verified digital certificates are relied upon.

Core Legal Provisions on Confidentiality & Privacy

Section 74 – Publication for Fraudulent Purpose

Section 74 is about the **purpose** (using even a real-looking certificate to commit a scam).

Who: Any person who publishes a Digital Signature Certificate.

Intention: With *fraudulent or unlawful purpose*.

Act: Publishes or uses a Digital Signature Certificate to commit fraud.

Punishment: Imprisonment up to **2 years** OR fine up to **₹1 lakh** OR both.

Legal status: Cognizable, bailable (Section 77B).



Compromises both *confidentiality and integrity* by enabling unauthorized or deceptive electronic activities. It allows attackers to impersonate legitimate users and access sensitive information. This provision acts as a deterrent against misuse of digital identity tools in cybercrimes. It also strengthens trust in secure digital communication systems.

Procedural Aspects & Enforcement Mechanisms

Section 77B – Cognizance & Bail

Cognizable Offence: Offenses punishable with imprisonment of 3 years or more are cognizable (Police can arrest without a warrant).

Non-Cognizable Offence: Offenses punishable with imprisonment of less than 3 years are non-cognizable

However, the Act specifies that all offenses under the IT Act are **bailable**, *except* for those specifically listed otherwise (like cyber terrorism or child pornography)

Example: Section 72 (2 years) → non-cognizable, bailable. Section 72A (3 years) → cognizable, bailable.

Procedural Aspects & Enforcement Mechanisms

Section 80 – Powers of Police to Enter and Search

Who: Any police officer not below the rank of Inspector or any other officer authorized by the Central Government.

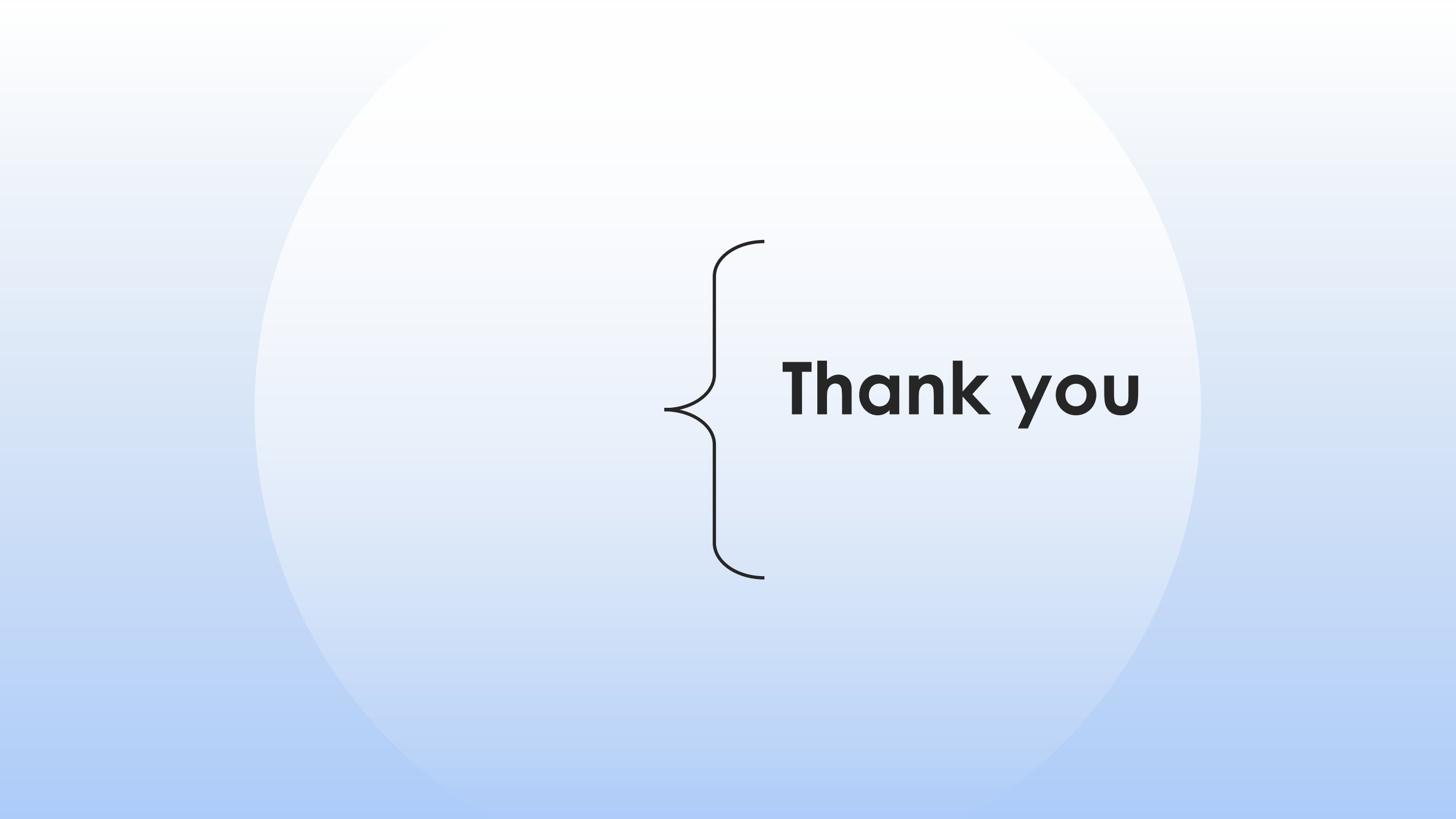
Where: These powers are specifically applicable to any public place.

Condition: The officer must have reasonable suspicion that an offense under this Act has been, or is being, committed.

Act: The officer may enter, search, and arrest any person without a warrant.

Legal Safeguard: The search must respect individual rights and be conducted according to legal procedures to ensure dignity and legality





Thank you